

Information Requests

About this report

Insights into legal demands to produce account information from governments, law enforcement, and third parties around the world.



Information Requests

Government

Non-Government

Jul - Dec 2021 ▾

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Government

Published on July 28, 2022

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01. Latest Data: Government

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Note: This table was updated to correct data that previously included a disclosure to Turkey, as no disclosures were made to Turkey in TTR20.

02. Overview

This section covers the latest data about government information requests for X and Periscope account information from around the world. These requests include a combination of routine requests and emergency requests. There are also trends and details about the global volume of requests, accounts specified, and the corresponding compliance rates, as well as insights into our related policies and global preservation requests. We received our first case referencing Spaces.

Some notable changes since the last report: ^[1]

Information requests

Compliance rate

-7%

Decrease in **global information requests** compared to the last reporting period.

+11%

Increase in **global compliance rate** compared to the last reporting period.

Accounts specified

+9%

Increase in **global accounts specified** compared to the last reporting period.



03. Analysis

Big picture

Global governments and law enforcement agencies submitted approximately 7% fewer information requests (combined emergency and routine requests) compared to the previous reporting period. There was a 9% increase in the aggregate number of accounts specified. X produced some or all of the requested information in response to 40% of these information requests.

Further analysis into these areas follow below. Additional information is available in [X's legal request FAQs](#).

Country insights

X has now received government information requests from 99 different countries since 2012, including [Jamaica](#) which appeared in this report for the first time.

Top requesters

The [United States](#)[®] submitted the most government information requests during this reporting period, accounting for 20% of the global volume, and 39% of the global accounts specified. The second highest volume of requests originated from [India](#), comprising 19% of global information requests and 27% of the global accounts specified.

[Japan](#) (17%) and [France](#) (17%) and [Germany](#) (6%) round out the top five countries by volume. Combined, these five countries accounted for 79% of all global information requests during this reporting period. This is the second report in a row in which these countries represent the top five global requesters (in varying order).



Worldwide



India

Top requesting countries (routine requests)

1. **India**
2. **France**
3. **United States**
4. **Japan**
5. **Germany**

X received **63 (+3%) more routine requests** from India, while the number of routine accounts specified **increased by 205 (+3%)** during this reporting period for a total of 2,211 requests for 7,768 accounts.



France

X received **180 (+11%) more routine requests** from France, while the number of routine accounts specified **increased by 256 (+12%)** during this reporting period for a total of 1,993 requests for 2,532 accounts.



United States

X received **604 (-26%) fewer routine requests** from the United States, while the number of routine accounts specified **increased by 4160 (+65%)** during this reporting period for a total of 2,333 requests for 11,264 accounts.



Japan

X received **333 (-17%) fewer routine requests** from Japan, while the number of routine accounts specified **decreased by 509 (-22%)** during this reporting period for a total of 2,003 requests for 2,316 accounts.



Germany

X received **6 (-1%) fewer routine requests** from Germany, while the number of routine accounts specified **increased by 49 (+7%)** during this reporting period for a total of 634 requests for 847 accounts.



Emergency requests

X may disclose account information to law enforcement officials in response to a valid [emergency request](#) as described in our [Guidelines for Law Enforcement](#).[®]

Emergency requests accounted for roughly 14% of global information requests submitted to X. Emergency requests decreased by 10% during this reporting period, while the aggregate number of accounts specified in these requests decreased by 17%.

The [United States](#) submitted the highest volume of global emergency requests (35%), followed by [Japan](#) (24%), and [India](#) (11%).

International cooperation

The CLOUD Act

As previously noted, the [Clarifying Lawful Overseas Use of Data Act](#) (“CLOUD Act”; enacted in March 2018) established a framework for the U.S. Government to enter into

enacted in March 2018) established a framework for the U.S. Government to enter into bilateral agreements with certain qualifying foreign governments. Once such a bilateral agreement goes into effect, U.S. providers, such as X, may receive compulsory legal demands directly from foreign government entities to disclose account information and content of communications, as well as real-time surveillance orders for account information, which are akin to pen register/trap and trace and wiretap orders as described in our [U.S. report](#).

X continues to closely monitor developments related to cross-border legal requests for user data. We will update our policies as necessitated by changes in the legal landscape, in keeping with [our commitment](#) to defending and respecting the user's voice and transparency.

Request considerations

Narrowing requests

Where appropriate, X will push back on requests for account information which are incomplete or improper, such as requests that are facially invalid or overbroad in scope. Depending on the circumstances, we may produce some data after working to narrow a request, or we may not disclose any data. We also may not have any responsive records to produce.⁸

X narrowed or did not disclose information in response to 60% of global government information requests, a decrease of 11% during this reporting period.

User notice

We notify specified account holders of requests for their account information unless we are prohibited or the request falls into one of the exceptions to our user notice policy.⁹

We were able to notify account holders in response to 219 global information requests during this reporting period.

04. Preservation Requests

X accepts government requests to preserve account information as outlined in our [Guidelines for Law Enforcement](#).

Government entities issue preservation requests that direct service providers like X to temporarily save information pertaining to an investigation. These requests give law enforcement, prosecutors, etc. the time needed to get the valid legal process, such as a search warrant, required to lawfully obtain that saved information. Upon receipt of a valid preservation request, we will temporarily preserve, but not disclose, a snapshot of the relevant account information for 90 days pending issuance and service of valid legal process.¹⁰

Global government preservation requests **increased by 10%**, while accounts specified **increased by 19%** during this reporting period. The [United States](#) (34%) and [India](#) (51%) together accounted for **85%** of all global preservation requests.

Non-Government

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01. Latest Data: Non-Government

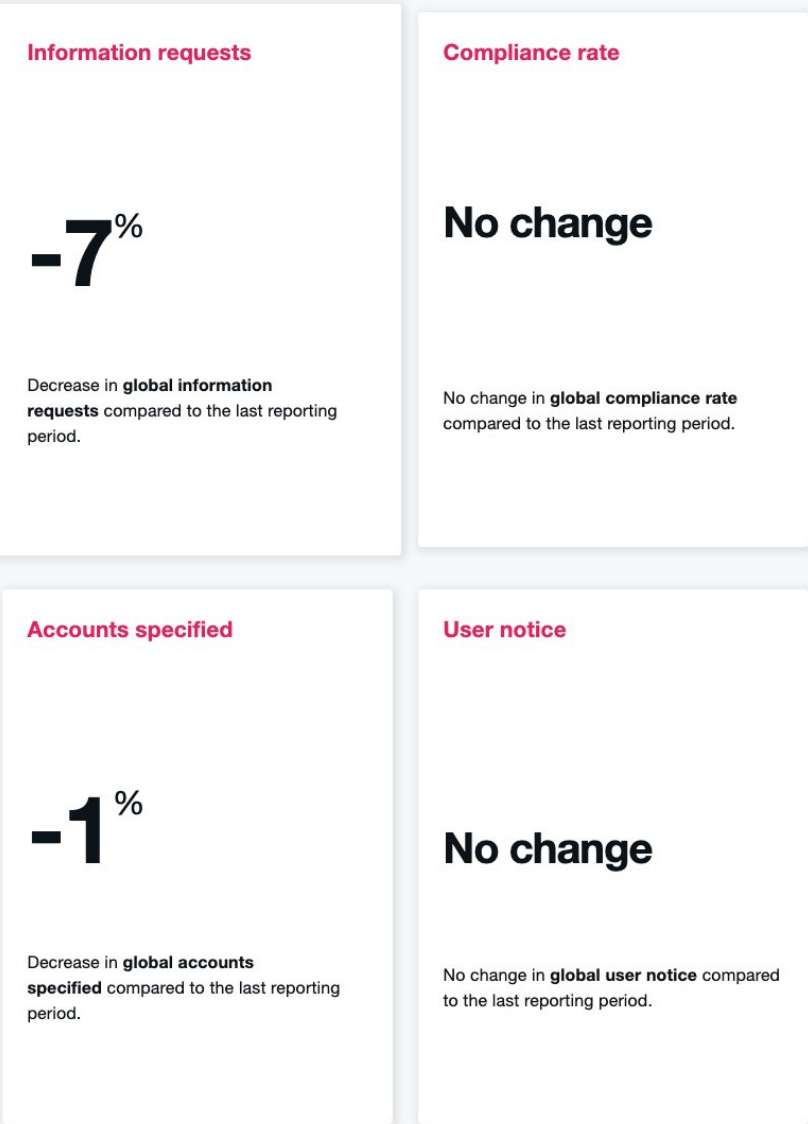
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02. Overview

X receives requests for account information from non-governmental parties around the world. These typically include civil actions, such as a divorce proceeding, as well as requests made by criminal defendants, where they are typically seeking account information in support of their legal defense.⁽⁸⁾

More information about non-government information requests can be found in our Help Center pages, including [Accessing Your X Data](#) and [Legal Request FAQ](#).



03. Analysis

X has now received non-government information requests from 36 different countries since 2014, including [New Zealand](#), which appeared in this report for the first time.

X received 7% fewer non-government information requests during this reporting period. The number of accounts specified in these requests decreased by 1%, and the compliance rate remained the same, at 47%.⁹¹

Defending free expression

Anonymous and pseudonymous speech is important to X and is central to our commitment to [defend and protect the voices of our users](#). X often receives non-government information requests to disclose account information of anonymous or pseudonymous X users (i.e., requests to “unmask” the identity of the user). X frequently objects to such requests, particularly in the U.S.

X objected to 29 U.S. civil requests for account information that sought to unmask the identities of anonymous speakers on first amendment grounds during this reporting period. We litigated 2 of those requests. X succeeded in convincing courts to apply the applicable First Amendment protections in 1 case, and 1 case remains pending. No information was produced on 93% of all unmasking requests.

Footnotes

Some cases received during this reporting period may be in progress and may not be closed at the time of reporting.

Government

¹ Percentages rounded to the nearest whole number.

² U.S. numbers in the table above include requests received from [U.S. Legal Attachés](#) stationed in various international locations, who may have submitted requests under U.S. law in part to assist their local counterparts. This type of cross-border cooperation is most likely to happen in emergency circumstances (such as those following terror attacks).

³ We evaluate such requests on a case-by-case basis to determine if there is information to support a good faith belief that there is an imminent threat involving danger of death or serious physical injury to a person. In these situations, if we have information relevant to averting or mitigating the threat, we may disclose that information to law enforcement.

However, we may not disclose data in response to emergency disclosure requests for a variety of reasons. For example:

- We may not disclose data if the request fails to identify a valid X and/or Periscope account, or content on those platforms.
- We may push back to narrow requests that are overbroad, and only disclose the information relevant to averting or mitigating the specified threat.
- ⁴ Requests for Periscope account information are also reflected in the figures regarding aggregate requests.

⁵ We may not comply with requests for a variety of reasons. For example:

- We may not comply with requests that fail to identify a X and/or Periscope account or other content on those platforms.
- We may seek to narrow requests that are overly broad.
- Account holders may have challenged the requests after we've notified them.
- We may have sought additional context from the requester and did not receive a response.
- In some cases, X may challenge the request formally through litigation or informally through discussion directly with government entities.
- ⁶ Details about X's user notice policy are available in our [Guidelines for Law Enforcement](#) and our [Legal Request FAQ](#), which provides account holders with more information about what happens when we receive a request for their account information or removal of their content.
- Exceptions to user notice may include exigent or counterproductive circumstances, such as emergencies regarding imminent threat to life, child sexual exploitation, or terrorism.
- ⁷ We also regularly receive preservation extension requests (not reflected in the data above) from law enforcement or government requesters. If the requester submits a lawful and timely extension request, we will make reasonable attempts to continue to preserve the same snapshot of account information for an additional 90 days pending issuance and service of valid legal process.
- We may process multiple extension requests if requesters represent that they are engaged in a process for international cooperation (i.e. MLAT or letters rogatory), given these processes can take several months.

Non-Government

⁸ This data does not include an account holder's [request for their own account information](#).

⁹ We may not comply with non-government requests for a variety of reasons. For example:

- We may not comply with requests that fail to identify a X and/or Periscope account or other content on those platforms.
- We may reject requests that are directed to incorrect corporate entities.
- We may seek to narrow requests that are overly broad.
- Users may have challenged the requests after we've notified them.
- In other cases, X may challenge the request formally through litigation or informally through discussion directly with non-government parties (e.g., directing non-government parties to get the information they seek directly from the other parties through discovery).

Other reports

Legal requests for content removal



X Rules and TOS enforcement



Disclosures and elections integrity



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